

26NNCV00089 26NNCV00089

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26NNCV00089 Hearing Date: August 7, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion for Compliance and Sanctions

Hearing Date: 8/7/26

CASE NO./NAME: 26NNCV00089/ Arrash

Saidi v. General Motors, LLC

Moving Party: Defendant General Motors, LLC

Responding Party: Unopposed

Notice: Sufficient

Ruling: GRANT.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is lemon law case. Plaintiff Arrash

Saidi (Plaintiff) filed a Complaint against defendant General Motors LLC

(Defendant) for breach of implied warranty, breach of express warranty, and

violations of the Song-Beverly Act. Plaintiff purchased a 2024 Chevrolet Z71

Tahoe and alleges that the vehicle was not in merchantable condition and did

not conform with quality and safety standards. (Comp., ¶¶ 6-7.)

On June 18, 2026, and July 8, 2026,

Defendant filed the instant motions for compliance and sanctions due to

Plaintiff's alleged noncompliance with Code of Civil Procedure section 871.26.

No opposition has been filed as of August 5, 2026.

LEGAL

STANDARD

Code of Civil Procedure section 871.26 applies to [actions], brought

against a manufacturer pursuant to the Song-Beverly Act. (Code Civ. Proc., §

871.20 (a).)

Pursuant to section 871.26, "[w]ithin 120 days after the filing of the

answer or other responsive pleading, all parties have the right to conduct

initial depositions, each not to exceed two hours, of the following deponents: (1) plaintiff and (2) defendant, if they are a natural person, or person most qualified to testify on defendant's behalf."

(Code Civ. Proc., § 871.26(c).)

Unless the party failing to comply shows good cause... "[a]

one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's

attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the

defense attorney respectively, paid within 15 business days for failure to

comply with the provisions relating to depositions as prescribed in subdivision

(c)" shall be imposed. (Code Civ. Proc., § 871.26(j)(2).)

"Within 60 days after the filing of the answer or other responsive

pleading, all parties shall, without awaiting a discovery request, provide to

all other parties an initial disclosure and documents pursuant to subdivisions

(f), (g), and (h). (Code Civ. Proc., § 871.26(b).)

Under subdivision (f): plaintiff shall provide the following documents to all other parties pursuant to the timeline set forth in subdivision (b):

(1) sales or
lease agreement;

(2) copy of
current registration;

(3) any
finance information, account information, including payment history and
estimated payoff amount, and any loan modification agreements;

(4) any
repair orders, including to third-party repair facilities or the location of
where information relating to repair orders may be found;

(5) documents
detailing all underlying claimed incidental damages;

(6) information
pertaining to the market value of the motor vehicle that is currently in the
consumer's possession;

(7) any written, pre-suit communications with the
manufacturer, including, but not limited to, any restitution or replacement
request."

(Code Civ.
Proc., § 871.26(f).)

Under subdivision (g): plaintiff
shall provide the following information to all other parties pursuant to the
timelines set forth in subdivision (b):

(1) Mileage
of the motor vehicle as of the date of the disclosure;

(2) Primary

driver or drivers of the motor vehicle;

(3) If the motor vehicle is primarily used for a business purpose, whether more than five vehicles are registered to the business;

(4) Whether the plaintiff is still in possession of the motor vehicle;

(5) Address where the motor vehicle is located;

(6) Whether the plaintiff is an active or prior member of the Armed Forces;

(7) Whether the motor vehicle has been involved in a collision or accidents reported to insurance prior to the nonconformity, and if so, the approximate date of the collision, the name of the insurance company, and any applicable claim number;

(8) Whether the motor vehicle has any aftermarket modifications done after purchase of the motor vehicle, and if so, a list of each modification;

(9) Dates and mileages for presentations that are not included in the provided repair orders or the location of where the information may be found;

(10) Whether the plaintiff has had any pre-suit communications with the manufacturer, including, but not limited to, any restitution or replacement request;

(11) Any need for an interpreter for purposes of a deposition.

(Code Civ. Proc., § 871.26 (g).)

Unless the party failing to comply shows good cause... "[a] one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's

attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b)” shall be imposed. (Code Civ. Proc., § 871.26(j)(1).)

“For a plaintiff’s repeated noncompliance with subdivision (b), (c), or (d), a court shall order the case dismissed without prejudice and the plaintiff’s attorney to be responsible for costs awarded to the manufacturer.” (Code Civ. Proc., § 871.26(j)(3).)

DISCUSSION

Deposition

Defendant seeks

imposition of sanctions against Plaintiff for their failure to comply with section 871.26(c) and allow Defendant to conduct a deposition of Plaintiff. (Mot., 2.)

Defendant argues

that they have attempted to meet and confer to avoid the need for court intervention and Plaintiff has continued to prevent them from conducting the initial deposition as statutorily allowed under section 871.26(c). (Mot., p. 9.) Further, Defendant seeks imposition of sanctions, as required by statute, for noncompliance with the deposition requirement. (Ibid.) Defendant argues that there is no good cause or justification for Plaintiff’s failure to comply, and that based on unrequited meet and confer efforts the noncompliance should be considered repeated. (Mot., p. 10.)

Here, Defendant’s

answer was filed on February 4, 2026. Accordingly, Defendant had the right to conduct a deposition of Plaintiff by June 4, 2026, pursuant to section 871.26(c)’s 120-day time frame. (Kay Decl., ¶ 4.) Defendant’s counsel declares that they advised Plaintiff of deposition to be conducted on May 8, 2026, and a week before the deposition, Plaintiff simply advised that they would be in touch. (Kay Decl., ¶¶ 5-7.) As of June 18, 2026, Plaintiff had not provided a date or responded to Defendant’s several meet and confer efforts. (Kay Decl., ¶¶ 9-10; Exh. B.)

Since Plaintiff

has failed to comply with Defendant’s right to deposition within a specifically

identified time frame, and Plaintiff has not provided a good cause or justification for noncompliance, sanctions of \$1,500 will be imposed on Plaintiff's attorney as required pursuant to section 871.26(j)(2).

Documents & Information

Defendant seeks

imposition of sanctions against Plaintiff for their failure to comply with section 871.26(b), (f), and (g) and provide Defendant with requisite documents and information. (Mot., 2.)

Defendant argues

that as of July 1, 2026, they have not received the requisite materials or information in violation of the statute. (Mot., p. 10.) Further, Defendant argues that it is impossible for them to proceed with the matter, or meaningfully participate, without this information. (Ibid.) Defendant argues that there is no good cause or justification for Plaintiff's failure to comply, and that based on unrequited meet and confer efforts and several extensions the noncompliance should be considered repeated. (Mot., pp. 10-11.)

Here,

Defendant's answer was filed on February 4, 2026. Accordingly, Plaintiff was required to produce the identified documents and information by April 5, 2026, pursuant to section 871.26(b)'s 60-day time frame. Defendant's counsel declares that on June 18, 2026, they reached out to Plaintiff in efforts to meet and confer regarding this noncompliance and asked for the documents to be provided. (Olsen Decl., ¶ 3; Exh. A.) On June 29, 2026, Defendant's counsel sent a follow up meet and confer letter requesting documents to be provided. (Olsen Decl., ¶ 4; Exh. B.) As of July 1, 2026, Plaintiff had not provided the documents and information or responded to Defendant's several meet and confer efforts. (Olsen Decl., ¶ 5.)

Since Plaintiff

has failed to comply with the requirement to provide specifically identified documents and information to Defendant within a specifically identified time frame, and Plaintiff has not provided a good cause or justification for noncompliance, sanctions of \$1,500 will be imposed on Plaintiff's attorney as required pursuant to section 871.26(j)(1).

However, as this is Plaintiff's first

recorded noncompliance with subsections (b) and (c), the Court will not dismiss the action pursuant to subsection (j)(3). (Code Civ. Proc., § 871.26(j)(3).) The Court advises Plaintiff to comply with statutory requirements due to this dismissal provision in the case of repeated noncompliance.

Accordingly, the motion is GRANTED. Plaintiff is ordered to pay Defendant sanctions in the amount of \$1,500 pursuant to section 871.26(j)(2) for violation of section 871.26(c) plus \$1,500 pursuant to section 871.26(j)(1) for violation of section 871.26(b) for a total of \$3,000.

CONCLUSION AND ORDER

Defendant's motion for monetary sanctions is GRANTED. Plaintiff is ordered to pay Defendant sanctions in the amount of \$3,000 within business 15 days from this ruling pursuant to section 871.26(j)(1)-(2).

Plaintiff is ordered to comply with statutory requirements to allow deposition of Plaintiff and provide documents and information consistent with section 871.26(b) and (c).

MOVING PARTY is to give notice and provide a proposed order consistent with this ruling within 15 days from this date.